

April 22, 2025

Pat Brennan
Powell's Sales and Service
1305 Justus Blvd
Clarks Summit, PA 18411
(570) 587-2743
(570) 840-7811
pat@powellsequip.com

Proposal No: 15228-042125-CB

RE: GEKA AUTOMATIC LINE GEKA PAX HYDRACROP 165 E8 PAX 4000

Dear Pat,

In response to your request, it is a pleasure to offer the following information for your review.

If you have any questions or need additional information, please do not hesitate to call me.

Please review the Terms and Conditions of Sale.

Mid Atlantic Machinery, Inc. looks forward to a continuing relationship with your Company, helping you to fulfill all your Metal Fabrication needs.

Sincerely,

Chris Barsanti

Chris Barsanti
CB/dm

April 22, 2025

Proposal No. 15228-042125-CB

GEKA

AUTOMATIC LINE GEKA PAX HYDRACROP 165 E8 PAX 4000



Complete processing system for punching via a Programmable Numerically Control based in Windows.

SPECIFICATIONS

Minimum flat bar:	3" x 3/16"
Maximum flat bar:	1"
Maximum length of bars:	158" (4m)
Punching power:	185 Us tons
Number of punches:	1
Throat Depth	1

All capacities given are for 45kg/mm² or 65K Psi Tensile hardness material.

STANDARD EQUIPMENT**1 – PX351040
INFEED CONVEYOR**

- The profile is clamped and pushed through by means of a reinforced carriage driven by rack and pinion servo motor.
- Infeed conveyor composed of reinforced idle rollers valid for profiles up to 158" long.
- Material is indexed against fixed rollers by adjustable side rollers for accurate guiding of the material.
- Material is clamped for greater accuracy.
- Carriage controlled by the control and encoder.
- Feeding speed is variable from zero to 1,181"/min.
- Positioning accuracy: $\pm 0.009"$. + 0.003"/ft.

**2 – PX35000P
WORKING UNITS:****Punching unit**

- Punching unit for flat bars "Per Customers Tooling" diameter, (through 5/8" in 1084 Steel, 1" in A36 thickness).
- 185 tons of punching power with single head equipment and 8" throat.
- Single punching head "Per Customers Tooling" diameter
- Mechanic hold down provided for better material holding.

****4 Post Urethane Hold Down System for Damping the Noise and Vibration of Punching 1084**

- 2 Stage foot pedal with low pressure on first stage for tooling alignment
- Emergency Stop close to working area.

Other Information:

- Full Stroke or Jog Mode for inching of the tool with automatic return when lower limit switch is triggered.
- Gibbed and Guided punching cylinder for superb alignment of the tools.
- Rigid Frame for punching of 1084 Steel

Additional Information:

The following hand tools are included with the machine.

- Open End Wrench 17-19mm 20-22mm 24-27mm
- 75mm Wrench for removal of punch nut
- Hex Keys 3, 4, 5, 6, 8, 10, 12, 14mm
- Manual with Parts List on USB
- Automatic Lubrication of the Punch

Single cylinder operation with remote foot pedal.

For shaped tooling, the punch base is keyed, and the die holder is set up with a fixation bolt to keep the punch and die indexed and aligned. If punch is not using 1/4" keyways please inform us.

Voltage Selections:

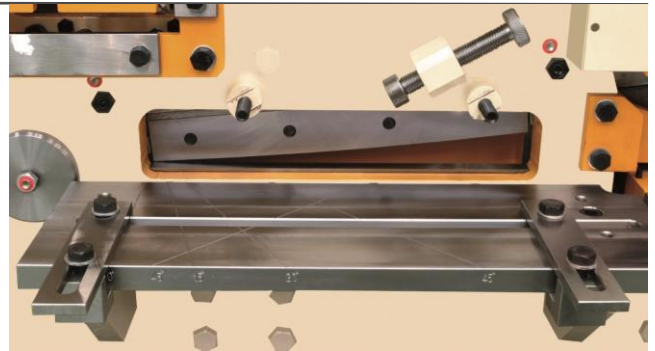
*Choose of 200-250 or 440-500V 60 Hertz. Motor of 20Hp.

Flat Shearing Station:

Working Height: 34-1/4"
 Length of Blade: 30-1/2"
 Capacities: 30" x 3/4" or 20" x 1"

Other Information:

- Rigid Table with mitering gradations inscribed in the table.
- Two adjustable guide bars.
- Manual hold down with access for shearing legs of angles

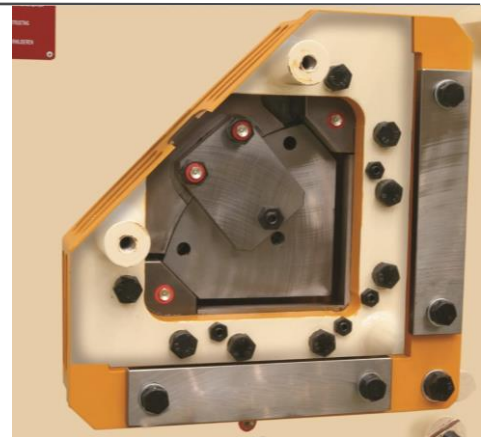


Angle Shearing Station:

Tonnage: 330 Us Tons
 Working Height: 44"
 Capacities: 8" x 8" x 3/4"
 • Angles at a 45° miter (leg in) - 3" x 3" x 5/16"

Other Information:

- Shearing of both legs of the angle at the same time
- "Non-deform cut" With no material loss.
- Vertical & Horizontal guides for square cuts
- Optional blade for 8" x 8" x 1" with slight distortion

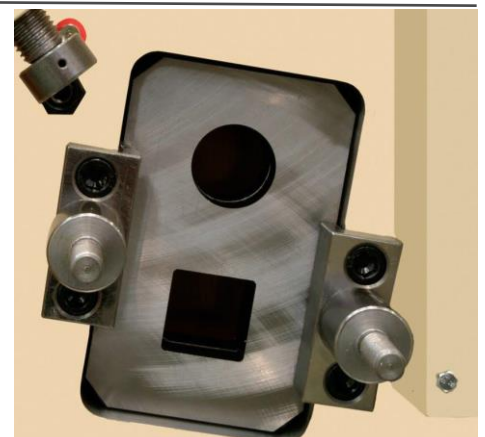


Section Shearing Station:

Tonnage: 213 Us Tons
 Standard Blade Set included in machine:
 Shearing blades for 3" x 4.1lb and 4" x 5.4lb Channels
 Multi Opening Round and Square Bar with opening of 9/16", 3/4", 1", 1-3/16"
 Rounds and 9/16", 1", 1-3/16" Square
 Maximum Profile with Optional Blades:

Other Information:

- Maximum Channel: 7" x 12.2lb
- Rounds and Squares up to 2-3/8"
- Other shapes also available as well as custom profiles.



Notching Station:

Standard Equipment included is a Rectangular Notcher

Capacities:

Width: 2-1/4"

Depth: 4-5/16"

Thickness: 5/8"

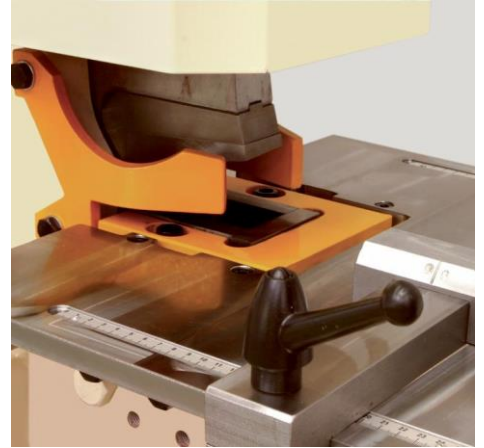
Working Height: 34-1/4"

Other Information:

- Gauging Table with inlayed inch scales as standard. Front to back movement on rollers for easier adjustment.
- Section is protected with a sliding guard with keyed lock out for safety.
- Emergency Stop close to working area.

Optional Equipment:

- Triangular Notcher with Optional Gauging Table
- Pipe Notcher
- Punching Attachment with Optional Gauge Table.



3- CNC B&R CONTROL UNIT:

Electrical Equipment

- Electric cabinet containing power and control equipment for the axis positioning and control of the machine.
- 3 Phase transformer for different incoming power to cover different USA voltage. With order, please indicate your voltage.

CNC

B&R PC based 15" touch screen control main features:

The unit consists of an industrial type of PC control mounted in console away from punching operations.

It incorporates a touch screen monitor with an intuitive and extremely user-friendly interface, developed by Geka for ease of navigation through all stages of operation.

- B&R Power Panel 2100 PC control Intel® Atom™ Architecture advance
- Single axis control unit.
- Windows embedded operating system
- 15" color touch screen XGA resolution
- B&R 2 Gb Compact Flash Memory for data storage.
- USB front port
- Ethernet port for network connectivity
- Easy and extremely user-friendly interface developed by Geka.
- Programming is made through Line Pro software developed by Geka.
- Importing of dxf/dstv files.
- Run mode displays layout of the part as it is being punched or spotted.



- Remote assistance via the internet through Team Viewer Software for support via internet connection to qualified after sales support.
- Run, design, jog, configuration, and alarm modes.
- Speed percentage control of the "X" gripper is adjustable via the touch screen potentiometer dial.
- Jog mode for calibration of axis, manual control of the axis forward and back, and go-to mode for manual punch gauging. Punch number selection and activation for multi-tool configurations.
- On-screen diagnostics of PLC input/outputs as well as the X driver, for ease of troubleshooting the system.
- Set-up features include selections of multiple languages, inches or millimeters, type of machine, number of punches, calibration points, and "X" min/max adjustments.
- 15" color touch screen WXGA resolution.
- Integrated industrial keyboard with rubberized keys.
- Multifunction buttons.



4- HYDRAULIC POWER PACK (PX3520EH)

A Hydraulic Group consisting of.

- Complete hydraulic system with directional valves and completely connected with hoses and fittings.
- Maximum working pressure of 265 Bar
- Oil tank capacity is 200 litres.

5- TOOLING PACKAGE (PX35TP00)

1 set of round punch and die. Tooling to be that of the older machine.

6- OUTFEED CONVEYOR. 158" (PX351050)

7- INSTALLATION, COMMISSIONING AND TRAINING

GEKA PAX SUMMARY PAGE

PRICES DDU (DELIVERED DUTY UNPAID TO POWELL'S SALES & SERVICE)

GEKA PAX is composed of:

1-PX351040 Infeed conveyor 2- PX35000P Working units 3- CNC B&R Control cabinet 4- PX3520EH Hydraulic power pack 5- PX35TP00 Tooling package 6- INSTALLATION, COMMISSIONING AND TRAINING	\$ 245,934.00
OPTIONS	
6-PX351050 Outfeed conveyor. 158".	\$ 7.120,00

****Included in Price is Lubrication of the punch with each punching cycle****

Prices include DELIVERED DUTY UNPAID INSTALLATION AND TRAINING INCLUDED.

Prices do not include new Tariffs from the US Government to the EU. If this tariffs are still valid when the machine would arrive to US Port, then prices would increase 20% from these prices above

Intercoms 2020 DDU. Delivery Duties Unpaid to Jacksonville Steel

INSTALLATION (All Included, A Technician, Travel, Hotel and Meals)

***If the Euro to USA Dollar exchange rate goes above \$1.15 to 1€ these prices will need to be adjusted. ***

TERMS & CONDITIONS

DELIVERY TIME	Around 24-26 working weeks (All of August, 2 weeks of New Years, and 1 week of Easter not included) from receipt of the order and down payment. This does not include transport time to USA or inland shipping. Due to worldwide shipping slow down due to recent events this timeline could be longer.
DELIVERY TERMS <i>Incoterms 2000</i>	DDU POWELLS SALES & SERVICE
TRANSPORT	40' open top
PAYMENT TERMS	35% when ordering the machine and 55% transfer prior to shipment 10% Net 20 after installation.
OFFER VALIDITY	60 days from the date of the offer.

Due to constant aim of giving the biggest value to the client, we may bring technical variations implying a development and improvement of the machine.



6332 Flank Drive
Harrisburg, PA 17112-2700
Ph. (717) 541-1633 * Fax (717) 541-8014
www.midatlanticmachinery.com

DELIVERY: 24 To 26 Weeks - To Be Determined at Time of Order
F.O.B: Shipping Point
TERMS: 35% Deposit with Order, 55% Prior To Shipment; Balance Net
20 Days (With Approved Credit)

Price for machine plus options (please circle options) \$ _____
(Prepay & add freight to invoice)

Purchase order number (if applicable) _____

Please specify machine voltage _____

AP Contact Person _____

AP Contact Email Address _____

Accepted By: Pat Brennan

Date _____

Customer:

Powell's Sales and Service

Contact:

Pat Brennan

Equipment Price:

\$245,934.00

Equipment:

Geka USA

PAYMENT OPTIONS:

	Option 1	Option 2	Option 3	Option 4	Option 5
Term (Months)	36	48	60	72	84
Monthly Payment	\$7,791.19	\$6,045.06	\$4,987.54	\$4,311.22	\$3,834.11
Payment Factor	0.03168	0.02458	0.02028	0.01753	0.01559
Purchase Option	\$1.00	\$1.00	\$1.00	\$1.00	\$1.00
Weekly Payment	\$1,797.97	\$1,395.01	\$1,150.97	\$994.90	\$884.79
Hourly Payment	\$44.95	\$34.88	\$28.77	\$24.87	\$22.12

2024 Section 179 Federal Income Tax Deduction:

This deduction allows a small manufacturing company that spends less than \$3,050,000 but no more than \$4,270,000 million a year on equipment to deduct the first \$1,220,000 from their taxable income. 60% Bonus Depreciation is taken after deduction limit has been reached.

Section 179 Deduction:	\$245,934
60% Bonus Depreciation Deduction:	\$0
Total First Year Deduction:	\$245,934
Total Tax Benefit:	\$78,699
Total Deduction x 32% (Assumed Federal Tax Bracket)	
Equipment Cost After Tax Savings	\$167,235

- Terms and conditions are subject to credit approval/market changes and may vary based on credit qualifications.
- Advance payments may be required and rates will be fixed for the term at commencement.
- Companies may also be eligible for additional state and local tax deductions plus interest deductions.
- These calculations are estimates only and every company's tax situation is different.
- MFR is not qualified tax advisor. This worksheet must not be interpreted as either a legal opinion or tax advisory.
- You should always consult with your accountant prior to making any purchase based on tax consequences.
- This document is for informational purposes only and does not constitute a commitment from MFR to provide financing.



For additional financing options and information, please contact:

Lisa Luedtke
lluedtke@mfresources.com
 320-281-4200 - Direct
 320-292-4610 - Mobile

Mid Atlantic Machinery, Inc.

TERMS AND CONDITIONS GOVERNING ALL QUOTATIONS AND ORDERS:

QUOTATIONS AND ORDER ACCEPTANCES:

(A) This quotation, or proposal, from Mid-Atlantic Machinery, Inc. (hereinafter referred to as "MAM") **does not constitute an offer but is an invitation to place an order. The terms of this proposal shall be accepted by the buyer ("Buyer") upon Buyer's issuance of a purchase order and/or down payment.** All orders are subject to written acceptance by MAM. If an order based upon this proposal is accepted by MAM, it is agreed that the order shall be subject to the terms and conditions (the "Terms") set forth hereinbelow. It is also understood that if the order placed is pursuant to a government contract, it shall also be subject to any conditions required by laws of the United States and mandatory terms of such government contract as are disclosed to MAM. No contract term or condition shall be amended, deleted or added without the express written consent of MAM, and MAM hereby gives notice of objection to any terms set forth in any other writing which are in addition to or different from the terms set forth in this quotation.

(B) Orders based on our quotations are continuous, outstanding, and made by a duly authorized party.

(C) Orders based on our quotation are subject to acceptance upon sale confirmation and/or acceptance by manufacturer(s) or supplier(s).

(D) This quotation and all drawings, specifications, materials, patterns and special purpose manufacturing aids which are supplied to you by MAM shall be kept in confidence and shall be listed and maintained in suitable condition at the expense of Buyer and are to be considered the property of MAM held on consignment by Buyer and to be insured while in Buyer's possession. Such articles and all copies thereof from any source shall be returned to MAM at any time upon request and shall not be used for any third parties without the express permission of MAM.

(E) Any clerical errors are subject to correction and must be brought to the attention of MAM as soon as suspected.

PRICING:

(A) All pricing is reflected in USD as standard. Prices in MAM's advertising materials and website are subject to change without notice. All specifications are subject to update, upgrade, and/or revision without notice.

(B) All sales are made subject to all state, county, city/local and federal use, sales and excise taxes and tariffs, the amount of which Buyer agrees to pay. Any such tax may be billed to the Buyer as part of the selling price or may be separately billed at any time by MAM, if MAM is required by any taxing authority to collect or pay such tax.

(C) Unless otherwise specified and agreed to by MAM in writing, prices are F.O.B. factory, at point of manufacture. Buyer is responsible and bears all risk of loss during transport once the machine(s) and/or other purchase(s) (the "Goods") leaves manufacturer. Buyer is responsible for all costs of transportation, including rigging, from the point of manufacture and is responsible for insurance on the Goods during transit. Buyer shall pay any additional charges for special packaging requested by Buyer.

PAYMENT TERMS:

(A) As stated on proposal. Subject to credit approval at time of acceptance of order unless otherwise stated in quotation. Any unpaid balance thereafter shall be subject to a service charge of up to 1 1/2% per month or the maximum allowed by law, whichever is less. There shall be no extension or change in the time for payment due to delays in installation and/or delays in operation of the equipment caused by damage, warranty service or warranty replacement of parts.

(B) Buyer shall remain liable for all orders, notwithstanding any request by Buyer to direct an invoice to a third party.

FORCE MAJEURE:

A party shall notify the other party hereto in writing within twenty-four (24) hours of the knowledge of a Force Majeure event, and neither party shall be considered to be in default of an accepted purchase order to the extent that its failure or delay in performance is actually caused by a Force Majeure. "Force Majeure" means acts of God or nature, acts or

declarations of civil or military authority (including government-ordered closures or lockdowns), fires, floods, epidemic, war, or like occurrences that are beyond the control and without the fault of either party, including but not limited to strikes or other labor troubles of port workers; however, strikes or other labor troubles involving a party, or its representatives shall not constitute Force Majeure. A party shall use commercially reasonable efforts to mitigate the effect of such Force Majeure and relief granted to the party experiencing Force Majeure shall be limited to an extension of the time of performance. If MAM experiences a Force Majeure event for more than ninety (90) days, Buyer shall have the right to terminate the accepted purchase order and is entitled to a refund of all monies paid to MAM subject to costs approved in advance by Buyer in writing.

MODIFICATION OR CANCELLATION OF ORDER:

(A) Purchase orders accepted by MAM may be cancelled only with MAM consent, except as set forth above for certain cases involving Force Majeure. In the event of such consent, you shall pay to MAM promptly upon receipt of invoice from it:

(1) Contract price for all products which shall have been completed prior to receipt of notice of cancellation.

(2) All actual costs made or incurred by MAM in connection with the uncompleted portion of the order plus normal profit of the total contract price as partial liquidated damages.

(3) Cancellation charges if any of MAM on account of its purchasing commitments made under the order.

(B) All Goods paid by Buyer hereunder shall be delivered to Buyer in their "as-is" condition at the date of such cancellation at the sole cost and expense of Buyer.

(C) Any modification, addendums or change orders to add or remove items from the purchase order that are requested later than 10 business days after MAM's acceptance of the purchase order is subject to a change order fee, related to re-engineering time, rework, and/or restocking, in MAM's sole discretion.

SHIPPING AND DELIVERY SCHEDULE:

(A) Subject to confirmation by factory at time of MAM acceptance of purchase order.

(B) Subject to unavoidable delays caused by Force Majeure, as defined herein.

(C) The terms of delivery are set in good faith and are approximate. All delivery times are estimates only and do not constitute commitments. Manufacture and/or delivery periods will not commence until written acceptance by MAM of the purchase order and MAM's receipt of any required initial deposit.

(D) Delays in delivery do not release the Buyer from its obligation to accept the delivery and does not give entitlement to claims for compensation by MAM, unless agreed otherwise by written acknowledgment. Buyer hereby agrees not to hold MAM liable for any compensatory, punitive, special, incidental or consequential damages, or any similar damages, whether foreseeable or not, arising from or relating to any delay in delivery and/or installation, including but not limited to: loss of profits, revenue or business opportunity; loss by reason of shutdown of facilities; loss because of inability to operate any machinery or facility at full capacity.

(E) In addition to the rights and remedies conferred upon MAM by law, MAM will not be required to proceed with the performance of any accepted purchase order if Buyer is in default in the performance of any order or contract with MAM and, in cases of doubt as to Buyer's financial responsibility, shipments under an order may be suspended or sent sight draft with bill of lading attached by MAM.

(F) Buyer is solely responsible for preparing its facilities for delivery and installation of the Goods, including but not limited to having suitable electrical service available, sufficient clearances for installation and positioning, and having capable load-bearing infrastructure.

INDEMNIFICATION:

(A) Buyer agrees to save MAM harmless and indemnify MAM from and against any and all claims, judgments, and expenses of defense arising from or relating to: non-compliance with the applicable electric code; non-operation or faulty operation of any Goods; personal injury, loss or damages, whether direct, indirect, special, or consequential, in any degree resulting from, or contributed to by, inadequate or deficient or excessive or inappropriate electrical power supply for the operation of any Goods, wherever located, inadequate or incorrect instruction of operating personnel in

the use of any Goods, and improper or incompetent operation thereof including but not limited to overloading, abuse thereof, improper or inadequate maintenance thereof, use of any Goods for purposes or on materials for which the same is not intended according to its specifications or to generally accepted trade standards, or alteration or modification of any kind to such Goods unless previously and specifically approved in writing by MAM.

(B) As used herein, "expenses of defense" shall include all reasonable defense expenses and costs including (but not limited to) counsel fees incurred by MAM. "Improper or incompetent operation" as referred to above shall include, but not be limited to, failure to follow manufacturer instructions, generally accepted trade practices, warnings and recommendations and failure to comply with applicable federal, state and local laws and regulations. Said indemnification and exoneration against claims and judgments shall include, but not be limited to, those resulting from any legal theory of strict liability and from any theory of breach of warranty of any kind. In addition, as used above, the terms "improper or inadequate maintenance" shall include, but not be limited to, improper or inadequate installation performed by Buyer.

(C) Buyer agrees not to hold MAM liable for compensatory, punitive, special, incidental or consequential damages, or any similar damages, whether foreseeable or not, arising from or relating to any product malfunction or failure, including but not limited to: loss of profits, revenue or business opportunity; loss by reason of shutdown of facilities; loss because of inability to operate any machinery or facility at full capacity; damage to materials processed using the purchased products.

(D) These indemnification provisions shall supersede any inconsistent provision(s) in any document involving Buyer's purchase unless specifically agreed to in writing executed by MAM.

WARRANTY:

The Goods that are the subject of this sale have been manufactured by others. MAM makes no warranties, express or implied, in connection with this sale and, without limiting the generality of the foregoing, hereby expressly EXCLUDES any and all warranties of MERCHANTABILITY and warranties of fitness for a particular purpose. The warranties available to Buyer are those extended by the manufacturer to MAM to the extent that they are in force and effect, which warranties are on file at the offices of MAM and shall be assigned by MAM without recourse at Buyer's request. Performance and production data, including accuracy, capacity and capability of Goods are estimates only and not guarantees since they are dependent upon varying future production factors and conditions not within MAM's control. No agent, employee or representative of MAM has any authority to bind MAM to any affirmation, representation or warranty concerning the Goods that are the subject of this quotation beyond that specifically included in the written quotation. MAM shall have no obligation to install or provide improvements or changes in design adapted by the manufacturer or MAM for similar goods subsequent to acceptance of Buyer's order. In the event this quotation relates to used machinery, it is hereby agreed that MAM makes no warranties, express or implied in connection with the sale and, without limiting the generality of the foregoing, MAM hereby expressly EXCLUDES any and all warranties of MERCHANTABILITY and warranties of fitness for a particular purpose and Buyer takes such goods sold hereby in an "as-is", "where-is" condition.

LIMITATION OF LIABILITY

MAM does not warrant against and shall not be held responsible for any economic loss, loss of production or materials, property damage, product liability, personal injury, or any other claim by Buyer, its agents, employees, insurance carriers, subrogates, successors, assigns, or third parties arising out of the purchase and/or use of the Goods, except as expressly provided herein. In no event shall MAM be responsible for loss of profits, indirect, special, exemplary, or consequential damages, whether or not Buyer was aware of the possibility of such damages. MAM's liability to Buyer under this agreement shall be limited to the actual amount paid by Buyer for the Goods involved and shall in no event exceed MAM's applicable insurance coverage. These limitations will apply even if the limited remedy in this section fails of its essential purpose.

COMPLIANCE WITH LAWS AND SAFETY REGULATIONS:

(A) The contract resulting from the acceptance of an order pursuant to this quotation shall be governed by and construed according to the law of the Commonwealth of Pennsylvania without reference to its conflict of law provisions.

(B) MAM makes no guarantees or representations express or implied, that the Goods are in compliance with OSHA. MAM does not guarantee or confirm, express or implied, that the installation or the use of the Goods complies with OSHA.

(C) It is also Buyer's sole responsibility to comply with all requirements or recommendations of Buyer, OSHA, and any other local, state, federal, or international safety or other treaties, statutes, laws or regulations as they may pertain to the sale, transport, alteration and/or operation or use of the Goods.

(D) It is the Buyer's sole responsibility to assure the safe use, maintenance, and operation of the Goods and of all options, safety equipment, and additions.

(E) Buyer agrees that its agents and employees, when operating the Goods, will comply with all operating procedures set forth in manufacturer operator manuals and instructions, and Buyer further agrees not to remove or modify any safety device, warning sign, operator manual, manufacturer instructions, or work handling tools. Buyer shall notify MAM promptly of any accident resulting from use of the Goods and agrees to cooperate with MAM in investigating and determining the cause of any such accident.

CONFIDENTIAL AND PROPRIETARY INFORMATION:

(A) Except to the extent that information is clearly in the public domain, all information provided by Buyer to MAM during the performance of the purchase order and all improvements, modifications and derivations thereto shall be deemed to be the proprietary information of Buyer. MAM agrees to hold Buyer's proprietary information in confidence and to protect it from release.

(B) The appearance of MAM and/or manufacturer logos on products does not constitute a license for Buyer to use them for any other purpose. Buyer shall not publish or reproduce any physical or digital materials supplied by MAM and/or any manufacturer without prior written consent of the appropriate party.

(C) Buyer shall adhere to any manufacturer terms and conditions and governing law pertaining to protection of its trade secrets, copyrights, and other intellectual property (collectively, "IP"), and Buyer shall not disassemble or deconstruct any of the Goods in any manner designed to infringe on manufacturer's IP rights without manufacturer's express approval.

OTHER TERMS

(A) Any limitations on liability set forth herein as to MAM, as well as commitments to indemnify and save MAM harmless, apply likewise for the benefit of its owners, agents, officers, employees, representatives, affiliates (subsidiaries and entities with common ownership), and assigns.

(B) Buyer agrees that jurisdiction and venue for any disputes arising from the accepted purchase order shall be mandatorily brought in the state or federal courts located in Dauphin County, Pennsylvania.

(C) MAM AND BUYER WAIVE THE RIGHT TO A TRIAL BY JURY IN ANY LAWSUIT ARISING OUT OF OR RELATING TO AN ACCEPTED PURCHASE ORDER.

(D) These Terms shall be construed without aid of any canon, custom or rule of law requiring construction against the drafter.

(E) A purchase order may not be assigned without MAM's express written consent.

(F) For purchases to be financed by MAM, these Terms shall be in addition to the applicable financing and security agreement.

(G) If any term in these Terms is determined to be unenforceable, Buyer agrees that such provision shall be severed from the Terms and that Buyer shall remain bound by the remaining provisions.

(H) The prevailing party in any suit to enforce these Terms as part of an accepted purchase order shall be entitled to recover its reasonable attorney fees and legal costs related thereto.